



DRIVER INDEPENDENT CONTRACTOR AGREEMENT

DRIVER ICA — APPROVED v2

Approved: 19 August 2026

Curiousoft (Pty) Ltd | Registration No. 2016/429327/07

APPROVAL RECORD: This is v2 of the Driver ICA incorporating the following changes from the original Jason van der Merwe attorney draft (6 August 2026): (1) Clause 3.1 fully replaced — confirmed operational payout mechanics; (2) Clause 20 sub-clause numbering corrected from 18.1–18.4 to 20.1–20.4; (3) Registration number inserted in preamble. All other clauses are unchanged from Jason's original draft. Jason van der Merwe confirmed approval in writing on 19 August 2026 (email subject: "Driver ICA — Clause 3 revised draft for your review and approval"): "No issues with the changes to 3.1. You may proceed." This document has been deployed to the iZinga onboarding platform (izinga-onboarding feature/ambassador-referral, merged to develop 19 August 2026).

DRIVER INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("**Agreement**") is entered into between:

Curiousoft (Pty) Ltd t/a iZinga, registration number **2016/429327/07**, a private company incorporated in the Republic of South Africa, with its registered address at 68 Jacaranda Avenue, Olivedale, Randburg, 2188 ("**iZinga**");

and

The driver as identified and registered through the iZinga onboarding application ("**Driver**").

iZinga and the Driver are referred to individually as "**a Party**" and collectively as "**the Parties**."

1. NATURE OF THE RELATIONSHIP

1.1 Independent Contractor Status

The Driver is engaged as an independent contractor.

The Driver acknowledges and agrees that:

Nothing in this Agreement creates a relationship of employment, partnership, agency, joint venture, or franchise between the Parties.

The Driver is not entitled to employee benefits, including paid leave, overtime, severance pay, pension fund contributions, medical aid contributions, unemployment insurance contributions, or any benefits applicable to employees.

The Driver is responsible for all taxes, levies, statutory contributions, registrations, licences and regulatory requirements applicable to the Driver's business.

1.2 Operational Independence

The Driver:

- Determines whether and when to make themselves available for deliveries.
- Is under no obligation to accept any delivery opportunity made available through the Platform.
- May provide services to other businesses, platforms, customers and competitors.
- Supplies and maintains their own vehicle, fuel, mobile device, insurance and equipment.
- Bears all operating expenses associated with performing delivery services.

Nothing in this Agreement shall be construed as granting iZinga the right to control the manner in which the Driver performs the delivery services, save to the extent necessary to maintain platform standards, legal compliance, customer safety and service quality.

2. PLATFORM SERVICES

iZinga operates a digital platform which connects customers requiring delivery services with independent delivery drivers.

The Driver acknowledges that:

- iZinga is primarily a technology and logistics coordination platform.
 - Delivery services are performed by the Driver in their own capacity as an independent contractor.
 - iZinga does not guarantee any minimum number of delivery opportunities.
 - The Driver is under no obligation to accept any minimum volume of work.
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3. COMMISSION AND PAYMENT

3.1 Revenue Split

For each completed delivery:

- (a) iZinga shall retain 10% (ten percent) of the delivery fee as platform commission.
- (b) The Driver shall receive 90% (ninety percent) of the delivery fee as earnings for that delivery.

iZinga's platform calculates the Driver's entitlement automatically upon successful completion and confirmation of delivery through the Platform. The Driver is not required to submit invoices. iZinga shall initiate payment without any action required from the Driver.

Payment shall be made by EFT transfer to the Driver's registered bank account, or by payout to the Driver's registered mobile wallet or e-wallet.

iZinga shall process payout batches on each business day. Earnings confirmed as at the end of the preceding business day shall be included in the following business day's payout batch, subject to standard banking and payment processing times. Payouts are not processed on weekends or South African public holidays. Earnings confirmed on a Saturday, Sunday, or public holiday shall be

included in the payout batch processed on the next business day (being the following Monday, or the next business day if Monday falls on a public holiday).

Where a payout is to be made to a mobile wallet or e-wallet, the maximum payout per payout cycle is R3 000 (three thousand Rand). Any amount exceeding R3 000 in a single payout cycle shall carry over and be included in the following business day's payout batch.

Unless otherwise stated, all amounts are:

- (a) exclusive of VAT; and
- (b) payable in South African Rand (ZAR).

3.2 Payment

Payments shall be processed in accordance with iZinga's payment policies as updated from time to time and communicated through the Platform.

The Driver acknowledges that:

- Payment is earned only upon successful completion of delivery.
 - iZinga may deduct agreed commissions, chargebacks, refunds attributable to the Driver, and amounts recoverable under this Agreement.
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4. DRIVER INSURANCE REQUIREMENTS

4.1 Goods-in-Transit Insurance

The Driver shall maintain valid Goods-in-Transit ("GIT") insurance throughout the duration of this Agreement.

The insurance must:

- Be maintained at the Driver's sole cost.
- Cover goods transported by the Driver while performing deliveries through iZinga.
- Remain valid and enforceable at all times.

4.2 Proof of Insurance

The Driver shall:

- Upload proof of GIT insurance before conducting deliveries.
- Re-upload updated proof of cover annually.
- Immediately notify iZinga if cover is cancelled, suspended, reduced or expires.

4.3 Suspension

iZinga may immediately suspend the Driver's access to the Platform if:

- Insurance expires;
- Insurance is cancelled;
- Proof of insurance is not provided when requested.

Access may remain suspended until valid proof of cover is provided.

5. DRIVER OBLIGATIONS

The Driver shall:

- Hold all licences legally required to operate the vehicle used.
 - Comply with applicable road traffic laws.
 - Handle all goods with reasonable care.
 - Deliver goods only to the intended recipient or authorised person.
 - Maintain professional conduct when interacting with customers.
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6. CANCELLATION OF DELIVERIES

6.1 Driver-Initiated Cancellation

A Driver may cancel an accepted delivery where reasonably necessary, including:

- Vehicle breakdown.
- Personal emergency.
- Safety concerns.
- Incorrect delivery information.

Repeated cancellations may result in:

- Reduced platform ratings;
- Temporary suspension;
- Permanent deactivation where the pattern demonstrates abuse of the platform.

6.2 Customer Impact

Where a Driver cancels an accepted delivery without reasonable cause, iZinga may recover direct costs incurred as a result of arranging replacement delivery services.

7. LIABILITY FOR GOODS

7.1 Custody of Goods

The Driver assumes responsibility for goods from the moment they are collected until delivery is confirmed through the Platform.

7.2 Driver Liability

The Driver shall be liable for losses arising from:

- Theft attributable to the Driver.
- Fraud.
- Gross negligence.
- Wilful misconduct.
- Unauthorised disposal, transfer or abandonment of goods.

7.3 Recovery by iZinga

Where iZinga compensates a customer for losses caused by the Driver's conduct, iZinga may recover such amounts from the Driver to the extent permitted by law and subject to proof of liability.

8. CONFIDENTIALITY

The Driver shall keep confidential all:

- Customer information;
- Pricing information;
- Business processes;
- Technical information;
- Platform operations.

This obligation survives termination for five (5) years.

9. POPIA COMPLIANCE

The Driver shall comply with the Protection of Personal Information Act, 2013.

The Driver may only use personal information obtained through the Platform for purposes directly connected to completing deliveries.

The Driver shall not:

- Retain customer data unnecessarily;
 - Share customer data with any third parties;
 - Use customer information for marketing purposes.
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10. NON-COMPETE AND NON-SOLICITATION

Nothing in this Agreement prevents the Driver from working for competing delivery services.

However, for a period of twelve (12) months following termination, the Driver shall not:

- Solicit iZinga's corporate clients for competing delivery arrangements using confidential information acquired through the Platform;
- Misappropriate customer lists, pricing structures or business opportunities belonging to iZinga.

This clause is intended solely to protect iZinga's legitimate proprietary interests and shall not restrict the Driver's right to earn a livelihood.

11. SUSPENSION AND DEACTIVATION

iZinga may suspend or deactivate a Driver account where:

- Required insurance has lapsed.
- Misconduct occurs.
- Fraud is suspected.
- The Driver breaches this Agreement.
- Repeated customer complaints demonstrate unsafe or unacceptable conduct.
- The Driver provides false information during onboarding.

Where reasonably practicable, iZinga shall provide notice of the reason for suspension.

12. TERM AND TERMINATION

12.1 Term

This Agreement commences upon electronic acceptance by the Driver and remains in force until terminated.

12.2 Termination by Driver

The Driver may terminate this Agreement at any time by providing written notice through the Platform or by email.

12.3 Termination by iZinga

iZinga may terminate this Agreement:

- On 30 days' written notice; or
- Immediately for material breach, fraud, criminal conduct, insurance lapses, or conduct causing material reputational harm.

13. ELECTRONIC ACCEPTANCE

The Parties agree that:

This Agreement may be concluded electronically.

Acceptance by selecting "I Accept", ticking a consent checkbox, or any substantially similar electronic action within the onboarding application constitutes a valid electronic signature and agreement under the Electronic Communications and Transactions Act, 25 of 2002.

Electronic records maintained by iZinga shall constitute prima facie proof of acceptance.

14. EXISTING DRIVER ACCEPTANCE

All drivers registered on the iZinga platform prior to the implementation of this Agreement shall be required to accept this Agreement before accepting further delivery opportunities.

Continued use of the Platform following acceptance constitutes agreement to be bound by its terms.

15. DISPUTE RESOLUTION

Any dispute arising from this Agreement shall:

- First be referred to senior management for resolution.
- If unresolved within 10 days after acknowledgement of receipt by senior management, be referred to mediation.
- If still unresolved, be referred to arbitration administered by AFSA.

The arbitration shall take place in Johannesburg or Durban, at iZinga's election.

Any arbitration award may be made an order of court.

16. WARRANTIES

The Driver warrants that:

- It has the necessary skill, expertise, licences, and authority to perform the services;
 - The services will be performed professionally and competently;
 - The services and deliverables will not knowingly infringe the intellectual property rights of any third party.
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17. INDEMNITY

The Driver indemnifies and holds harmless iZinga against any claims, losses, liabilities, damages, costs, or expenses arising from:

- The Driver's breach of this Agreement;
 - Negligence or misconduct by the Driver;
 - Any claim by a third party relating to the Driver's activities.
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18. LIABILITY

Neither Party shall be liable to the other for any indirect, special, consequential, or incidental damages arising from this Agreement.

The total liability of either Party shall not exceed the total fees paid under this Agreement, except in cases of fraud, gross negligence, wilful misconduct, breach of confidentiality, or infringement of intellectual property rights.

19. NOTICES

Any notice under this Agreement shall be in writing and sent to the addresses or email addresses set out above.

A notice shall be deemed received:

- On the date of delivery if delivered by hand;
 - On the date of transmission if sent by email and no delivery failure notice is received.
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20. GENERAL

20.1 This Agreement constitutes the entire agreement between the Parties.

20.2 No amendment shall be valid unless reduced to writing and signed by both Parties.

20.3 If any provision is found invalid or unenforceable, the remaining provisions shall remain in full force and effect.

20.4 This Agreement shall be governed by and construed in accordance with the laws of the Republic of South Africa.

21. DOMICILIUM

For purposes of notices and legal process:

iZinga / Curiousoft (Pty) Ltd — 68 Jacaranda Avenue, Olivedale, Randburg, 2188

The Driver's domicile shall be the address provided during onboarding, as updated from time to time through the Platform.

SIGNATURES

COMPANY

Name: _____

Position: _____

Signature: _____

Date: _____

CONTRACTOR

Name: _____

Signature: _____

Date: _____

Curiousoft (Pty) Ltd t/a iZinga processes personal information in accordance with the Protection of Personal Information Act 4 of 2013 (POPIA). For queries contact: privacy@izinga.co.za

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